

1.

CASE #	CASE NAME	HEARING NAME
CVPS2405028	CAZARES VS BODON LORI LIVING TRUST	MOTION FOR JUDGMENT ON THE PLEADINGS ON 1ST AMENDED COMPLAINT OF MARCO CAZARES BY BODON LORI LIVING TRUST, LORI BODON

Tentative Ruling:

No response or opposition to the motion submitted by Plaintiff.

Motion for Judgment on the Pleadings GRANTED with leave to amend. Plaintiff to file an amended complaint within 30 days.

No further amendments shall be permitted by Plaintiff. The court notes that Plaintiff's First Amended Complaint failed to address most, if not all the deficiencies highlighted by Defendant's original motion for judgment on the pleadings.

Case Management Conference continued to 10.22.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2407937	ROUSE VS WALMART, INC.	MOTION FOR LEAVE TO FILE A CROSS-COMPLAINT BY APPLIED MOBILITY DEVICES, LLC

Tentative Ruling: No tentative ruling. Hearing was continued to 7.30.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2500583	DIAFERIO VS CITY OF DESERT HOT SPRINGS	HEARING ON PEREMPTORY WRIT OF MANDATE

Tentative Ruling:

Factual Summary:

On or about October 20, 2017, Petitioner purchased real property located at 9900 Palm Dr. ("Property") in the City of Desert Hot Springs from Rudy Muessel. (AR CDHS00010 and CDHS00020-31.) The Property includes a single-story detached, 4-vehicle garage. (AR CDHS00199.) The Property is zoned for single-family residential use, and it used to include a house that was appurtenant to the garage. (AR CDHS00199 and CDHS00201, Transcript.) At some point, the house was subdivided from the Property and it is now owned by a different person. (AR CDHS00199.)

On or about March 7, 2023, the City received a complaint that Petitioner had converted the garage into a residential dwelling. (AR CDHS00199.) In response to the complaint, the City's Code Compliance Officer, Linda Human, visited that same day and discovered that the garage doors had been removed from the garage and replaced with residential doors and windows. (AR CDHS00011 and CDHS00199.) Ms. Human also observed tree limbs scattered about the alleyway adjacent to the Property, excessive